



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

December 23, 2022

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202103831 regarding Police Officer Jeanette Rodriguez, Tax No. 961193 (DADS No. 2022-27081)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that Officer Rodriguez' actions in questioning an individual and frisking an individual did not constitute misconduct. However, Officer Rodriguez' failure to provide those individuals with business cards was in error.

In this matter, Officer Rodriguez became aware that the driver of a vehicle that she and her partner had stopped was in possession of a knife, and in order to ensure her safety as she removed the passenger on her side of the vehicle, she asked him whether he was carrying anything on him that would poke or stab her. This was reasonable in light of the circumstances of the stop and the information that she had become aware of through the preliminary investigation. Further, as that passenger acknowledged also being in possession of a knife, it was again reasonable, to continue to ensure her safety, that the additional passenger that she interacted with was also frisked for weapons. Nevertheless, Officer Rodriguez was obligated to offer business cards to these individuals, upon the completion of her interactions with them.

It must be noted that the officers' preliminary investigation had revealed that the paper license plate on the vehicle was in fact fraudulent, and evidence of additional fraudulent paper license plates was present in plain view in the interior of the vehicle during the interaction between the officers and the vehicle's occupants. This evidence established probable cause of a crime.

Therefore, based on the foregoing, Police Officer Rodriguez will be issued a Schedule "A" Command Discipline with the forfeiture of one (1) vacation day for the violation of Administrative

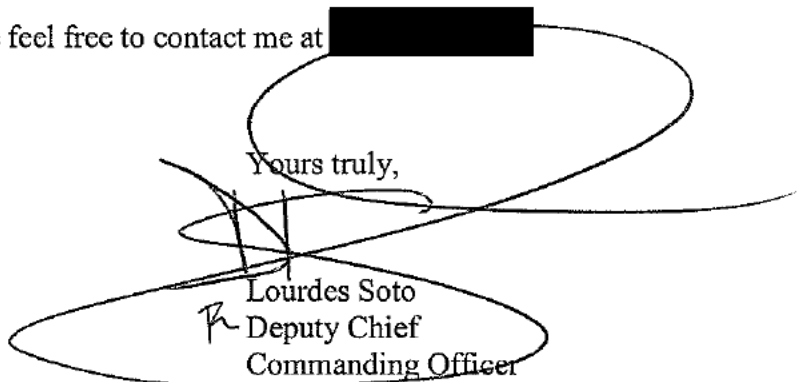
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Guide Procedure 304-11 (Compliance with New York City Right to Know Act) and receive no disciplinary action for the alleged violation of Patrol Guide Procedure 212-11 (Investigative Encounters/Question and Frisk).

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,


Lourdes Soto
Deputy Chief
Commanding Officer
Police Commissioner's Office